

		As previously ordered by this Court on 8/5/2026, the Plaintiff is ordered to arrange a meeting pursuant to Orange County Superior Court Local Rule 317 prior to Monday's (8/10/2026) Pretrial & Jury Trial Hearing at 8:30 AM.
9	30-2026-01583269 La Habra Woods Associates vs. Rodriguez	The Court has read and considered the Defendant's Demurrer to the Complaint for Unlawful Detainer and Motion to Strike (ROA 13), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 21). It is apparent to this Court that the Defendant used a boilerplate motion found online without changing the contents to match the facts in the case. For example, on page 2 of the Defendant's motion, it says "Paragraph 10.a(3) of the main Complaint pleading stated that the alleged 3-day notice was posted at the door on 8/01/2022" but that is not factually accurate, as the Complaint (ROA 2) answers that question with posting occurring on "06/09/2026". Additionally, the Defendant's moving papers say that the Complaint is a violation of "Los Angeles City Ordinance 186606," which is not applicable as the premises are located in the City of La Habra in the County of Orange. The Court DENIES the Motion to Strike. The Court OVERRULES the Demurrer. The Court orders the Defendant to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01583629 Simin Shapouri As Holder Of The Master Lease vs. Joseph	The Court has read and considered the Defendant's Demurrer and the Complaint (ROA 2). The Court takes Judicial Notice of the Proof of Personal Service (ROA 8). Defendant Matteo James Joseph aka Matvey Kirillovich Yozhikov filed this demurrer stating that the other two defendants vacated the premises on June 19, 2026 (Nicholas Temmermand) and June 25, 2026 (Susan Jo Joseph). Mr. Joseph states that Defendant notified the Plaintiff via written communication after service of process on July 11, 2026. The Proof of Service (ROA 8) signed by registered process server David Cunningham (Orange County #1895) shows personal service of Susan Jo Joseph at the premises address (635 Nyes Place, Laguna Beach, CA 92651) on July 19, 2026 at 9:30 AM, which is after the date on which Mr. Joseph alleges that she vacated the premises. The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
11	30-2026-01580043 Mahgerefteh vs. Hawes	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 30), the Complaint (ROA 1) and the Plaintiff's Opposition (ROA 34).

		The Lease agreement, which is attached to the Complaint, contains a “Rent Cap and Just Cause Addendum” which is signed by both the Plaintiff and Defendant. The Notice of Exemption box is not marked, which means that the subject property is subject to the Tenant Protection Act. The Tenant Protection Act requires service of a notice to perform covenants or quit prior to a notice to quit under Civil Code § 1946.2(c). Additionally, the Plaintiff alleges in the Complaint a severe nuisance but failed to provide notice under California Code of Civil Procedure § 1161(4). A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint. The Court Clerk is to provide notice of the Court’s ruling.
12	30-2026-01584179 Park Vista, Ltd. vs. Arredondo	The Court has read and considered the Defendants’ Demurrer to the Complaint (ROA 20), the Complaint (ROA 2) and the Plaintiff’s Opposition (ROA 23). The Court OVERRULES the Demurrer. The Complaint is facially sufficient to pursue a cause of action for an unlawful detainer. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.